

(appeal by the professional representative), the board answered this question in the affirmative based on the wording "final decision" in Art. 6(3) RDR. However, in D.1/18, a subsequent decision, the interpretation given in decisions D.2/18 was not followed and the board held that only a decision which effectively terminates the disciplinary proceedings by a substantive decision vis-a-vis the professional representative is meant to be a "final decision" under Art. 8(1) RDR. The Disciplinary Committee's decision under Art. 6(2)(c) RDR to refer the complaint before it to the Disciplinary Board does not terminate first-instance proceedings, as it does not result in a dismissal of the complaint or a penalty under Art. 4(1) RDR. Rather, the proceedings continue before the other first-instance disciplinary body. The referral has only a procedural effect. It is thus not a final decision within the meaning of Art. 8(1) RDR and is not appealable. See also D.19/19 of 12 November 2021, which followed the approach in D.1/18.

4. Code of Professional Conduct

The *epi* Code of Conduct (OJ 2003, 523) lays down the general principles of professional conduct. Point 1(a) of the Code refers in turn, as regards the general requirements for *epi* members, to the RDR. According to D.1/18, the Code serves the interpretation of the rather generally formulated Rules of Professional Conduct in the RDR (see Art. 1 to 3 RDR); in a decision of a disciplinary body established under Art. 5 RDR, the Code's provisions can only be invoked with a specific provision of the Regulation.

4.1. General professional obligations

In D.16/95 the board ruled that, although drafting and filing translations and paying fees in the national phase in a contracting state were not directly related to grant, opposition or appeal proceedings, such activities were still covered by Art. 1 RDR. They were, after all, activities in connection with a European patent (see Art. 65 and 141 EPC 1973) and as such part of a professional representative's job. Regarding them as covered by Art. 1 RDR was also justified by the fact that it was difficult for outsiders (e.g. persons commissioned to translate patent specifications) to distinguish between those of a representative's activities which were directly related to grant, opposition or appeal proceedings and those which were not. Since national-phase-related activities were thus covered by Art. 1 RDR, reprehensible conduct in connection with them constituted a breach of a representative's general professional obligations under that provision (see also D.25/05).

4.2. Professional secrecy

In D.11/91 (OJ 1994, 401), the appellant had requested the removal of various documents placed on file by the complainant. The appellant argued that his request was justified because, inter alia, their inclusion contravened the rule of confidentiality to which professional representatives were subject. The documents were items of correspondence between the complainant and the disciplinary bodies and correspondence pertaining to an opposition case.

The board decided that the professional secrecy referred to in Art. 2 RDR set limits on the disciplinary bodies' powers of investigation and on the obligation under Art. 18 RDR for a

professional representative before the EPO to supply all relevant information. However, the mere obligation of confidentiality deriving from the principle enshrined in Part I RDR could not be invoked to resist a request under Art. 18 RDR.

4.3. Advertising

Point 2(a) of the Code of Conduct states that advertising is generally permitted provided that it is true and objective and conforms with basic principles such as integrity and compliance with professional secrecy. Exceptions are contained in point 2(b).

5. Non-appealability of decisions of the Disciplinary Board of Appeal

In D 5/82 (OJ 1983, 175) the DBA already noted that it has no power to refer questions to the Enlarged Board of Appeal. See also e.g. D 6/82 (OJ 1983, 337), D 3/20 and D 19/19.

In D 7/05 of 2 January 2007 and D 2/06 of 31 August 2006 the DBA had to consider requests seeking a review of its final decisions. The board stated that decisions of the boards of appeal and the DBA became final when issued, and were no longer subject to appeal, nor could they be set aside by the board itself. It refused the requests as inadmissible, with reference to the principles set out by the Enlarged Board of Appeal in G 1/97 (OJ 2000, 322), according to which the decision on inadmissibility is to be issued by the board of appeal which took the decision forming the subject of the request for revision. The decision on the request could be issued immediately and without further procedural formalities.

VI. THE EPO ACTING AS A PCT AUTHORITY – EURO-PCT APPLICATIONS

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1. Introduction

The EPC provisions governing "international applications filed under the Patent Cooperation Treaty – Euro-PCT applications" are contained in Part X of the Convention (Art. 150 to 153 EPC) and Part IX of the Implementing Regulations (R. 157 to 165 EPC). Pursuant to Art. 150(2) EPC, international applications filed under the PCT may be the subject of proceedings before the EPO. In such proceedings, the provisions of the PCT and its Regulations apply, supplemented by the provisions of the EPC. In case of conflict, the provisions of the PCT or its Regulations prevail. An international application for which the EPO is a designated Office (or, optionally, an elected Office), and which has been accorded an international filing date, is equivalent to a regular European application ("Euro-PCT application", Art. 153(2) EPC).

The Guidelines for Search and Examination at the EPO as PCT authority (March 2022 version) set out the practice and procedures to be followed for international applications before the EPO in the course of the international phase, while Chapter E-IX of the Guidelines for Examination in the EPO (March 2022 version) focuses on aspects particular to the handling of Euro-PCT applications in the European phase. Reference is also made to the comprehensive overview in the current "Euro-PCT Guide: PCT procedure at the EPO" (January 2022 version), Chapter 1.3 of which lists relevant official texts and further important sources of information.

2. Jurisdiction of the boards of appeal

The PCT does not expressly provide for appeal or petition during the international phase (cf. WIPO PCT Applicant's Guide – International Phase, para. 6.054). The sole exception under the EPC 1973 was the boards' competence to decide on protests against additional search or examination fees charged by the EPO acting as ISA (Art. 17(3)(a) PCT and Art. 154(3) EPC 1973) or IPEA (Art. 34(3)(a) PCT and Art. 155(3) EPC 1973) after a finding of lack of unity of invention. Thus, in J 24/99 the Legal Board confirmed that, apart

from protest cases for which the boards' responsibility explicitly derived from Art. 154(3) and 155(3) EPC 1973, the jurisdiction of the boards was limited by the EPC, in particular Art. 21 and 106 EPC, which do not confer any jurisdiction on them to review actions taken by the EPO as IPEA (see also J 15/91, OJ 1994, 296; J 14/98; J 10/15).

In case T 506/08 the EPO, acting as ISA, had issued a declaration of non-establishment of the ISR under Art. 17(2)(a) PCT. The examining division did not carry out a further search on the amended application, which it subsequently refused for lack of inventive step. At the appeal stage the applicant filed a request for a (partial) refund of the international search fee. However, the board declined jurisdiction to deal with the request. The guarantee of due process of law (cf. G 3/08, OJ 2011, 10), as invoked by the appellant, did not mean that each and every claim against the EPO was a matter for the boards (e.g. J 14/87, OJ 1988, 295; with reference to Art. 9 EPC 1973). Neither the PCT nor the Agreement between the European Patent Organisation and WIPO of 31 October 2001 provided for a refund in such a case.

Once the Euro-PCT application enters the regional phase before the EPO the appeal procedures provided for under the EPC supplement the provisions of the PCT (J 20/89, OJ 1991, 375). See also in this chapter VI.3.

Board of Appeal decisions on protests according to the former procedure are to be found in chapter II.B. "Unity of Invention". The current protest procedure under R 158(3) EPC and preceding interim procedure are referred to in chapter II.B.1.

3. The EPO acting as designated or elected Office

3.1. Competence of the EPO as designated or elected Office

In J 26/87 (OJ 1989, 329) the Legal Board held that if, on the proper interpretation of the request for grant of an international application, an applicant designated an EPC contracting state for which the PCT was in force on the filing date of the international application, the EPO was bound by the provisions of Art. 153 EPC 1973 to act as the designated Office for that contracting state, even if the international application was published by the International Bureau without mentioning that contracting state as a designated state.

J 19/93 also concerned the designation of EPC contracting states in an international application for the purpose of obtaining a European patent. The Legal Board pointed out that the EPO as elected or designated Office is fully competent to interpret applications appointing it to act in these capacities. The Office is not bound by the interpretation of the receiving Office or of the International Bureau (see also J 4/94, J 26/87).

In J 7/93 the International Bureau did not inform the EPO of its election (in the demand for international preliminary examination) within the former 21-month time limit under R 104b(1) EPC 1973 (version valid prior to 1 March 2000). The EPO issued a communication pursuant to the then applicable R 85a EPC 1973 concerning the grace period for late payment of the fees upon entry into the European phase and then a